

26NWLC28821 26NWLC28821

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Case Number: 26NWLC28821 Hearing Date: September 10, 2026 Dept: Y

26NWLC28821: WELLS FARGO BANK, N.A. vs DANIEL FONDA

Tentative Ruling:

The Court has read and reviewed the moving papers filed by Defendant Daniel Fonda's ("Defendant") Motion to Quash Service of Summons ("Motion"), including the supporting declaration.

Defendant's Motion was initially set for hearing on July 22, 2026. The Court continued the hearing on the Motion to September 10, 2026 because it was unclear whether Defendant had served Plaintiff Wells Fargo Bank, N.A. ("Plaintiff") with the Motion.

On July 22, 2026, Defendant filed a Proof of Service indicating service of the Motion and Proposed Order on Plaintiff by mail on June 23, 2026.

Defendant specially appears and moves to quash service of summons under Code of Civil Procedure ("CCP") § 418.10. Defendant contends that service is defective for the following reasons: (1) the SUM-100 Summons served in May 2026 was incomplete because of an unchecked "Notice to the Person Served" section and there was no service date; (2) Plaintiff's Proof of Service (POS-010) falsely certified the summons as completed "as an individual defendant"; and (3) Plaintiff failed to serve the Online Dispute Resolution flyer required by the Court's October 2017 Standing Order and failed to serve the ADR information package under CRC 3.221(c).

Defendant identifies himself as an attorney and appears in pro per. No opposition has been filed by Plaintiff.

Applicable Legal Standards

CCP § 418.10 authorizes a defendant to move to quash service of summons for lack of personal jurisdiction. A signed return of a registered process server creates a rebuttable presumption of proper service under Evidence Code § 647; the presumption affects the burden of producing evidence, which is addressed by Evidence Code § 660.

Analysis

Nature of Service and Presumptions

On May 20, 2026, Plaintiff filed a Proof of Service of Summons reflecting personal service by a registered process server, giving rise to the presumption under Evidence Code § 647. The Proof of Service asserts personal service on Defendant at his Covina address on May 20, 2026 at 8:38 p.m., by registered process server Artak Meliksetyan, and indicates the summons "Notice to the Person Served" was completed "as an individual defendant." Under Evidence Code § 647, the registered process server's declaration raises a rebuttable presumption of proper service, shifting to Defendant the burden of producing evidence to rebut that presumption per Evidence Code § 660.

Alleged Defect: Incomplete SUM-100 "Notice to the Person Served"

Defendant's declaration attaches as Exhibit 1 the SUM-100 form he asserts was served, showing the "Notice to the Person Served" checkboxes and service date line unmarked. In contrast, Plaintiff's filed POS-010 states that personal service on Defendant occurred on May 20, 2026, at 8:38 p.m., at 830 S. Calvados Ave., Covina, CA 91723-3403, and that the "Notice to the Person Served" on the summons "was completed as follows: as an individual defendant."

On the present record, Defendant's declaration, under penalty of perjury, and attached copy of the summons constitute evidentiary rebuttal to the registered server's statement that the "Notice to the Person Served" on the summons was completed. The Court finds Defendant's competent, specific declaration, coupled with the proffered summons copy, sufficient to overcome the presumption created by Evidence Code § 647 as to the particular fact that the "Notice to the Person Served" was completed on the face of the summons actually delivered. The absence of any opposition or counter-declaration from the process server or Plaintiff further leaves the presumption unrebutted in Plaintiff's favor on that point.

The question, however, is whether the omission on the face of the served summons of the check-box "as an individual defendant" defeats otherwise valid personal service. Defendant cites no authority holding that failure to check the "Notice to the Person Served" box on a SUM-100, when an individual is personally handed the summons and complaint, renders service void. The record shows personal delivery to Defendant himself, with identity confirmation, at a residential address. The POS-010 describes direct hand-to-hand service on "DANIEL FONDA," with identifying details, at 8:38 p.m. on May 20, 2026. On this record, even crediting that the checkbox on the summons was left unmarked, the manner of service shown is personal delivery to the named individual, which is sufficient to effect service under CCP § 415.10.

Accordingly, the Court concludes the unchecked "Notice to the Person Served" box on the copy of the summons delivered does not, by itself, establish noncompliance with the statutory requirements for personal delivery of a summons and complaint to an individual.

Alleged Noncompliance with Local Standing Order and CRC 3.221(c)

Defendant contends Plaintiff failed to serve the Los Angeles County's Online Dispute Resolution (ODR) flyer purportedly required by the October 17, 2017 Standing Order applicable to limited civil collection cases filed in the Southeast District (Norwalk). The Standing Order states each plaintiff "shall serve all named defendants with the Los Angeles County Consumer & Business Affairs Department's Online Dispute Resolution flyer." Defendant further asserts Plaintiff failed to serve the ADR information package required by CRC 3.221(c) "together with the complaint." The POS-010 lists the documents served and does not include the ODR flyer or an ADR information package.

Defendant cites no authority that failure to include the ODR flyer or the CRC 3.221(c) ADR package renders service of summons and complaint jurisdictionally defective such that it must be quashed. Absent such authority, the Court does not treat the omission of ADR materials as defeating service of the Summons and Complaint.

The Court also notes that the October 17, 2017 Standing Order appears to be outdated and no longer applies to Collections cases.

Other Complaints About Packet Order And Missing Date on Summons

Defendant asserts the Summons was not placed on top of the packet, and the service date line on the summons was blank. Defendant identifies no statute requiring the summons to be the top sheet or requiring the service date line on the summons to be completed for personal service to be valid, and he acknowledges CCP § 415.10 validates service notwithstanding omission of the service date on the summons he received.

RULING

Plaintiff's filed proof of service raised a presumption of proper service. Defendant has presented evidence disputing completeness of the summons form, but not disputing that he was personally handed the summons and complaint. On this record, Defendant has not met his burden to show that service failed to comply with the statutory method for personal service on an individual.

Accordingly, the Motion to Quash Service of Summons is DENIED.

Clerk to give notice.